

1.

CASE #	CASE NAME	HEARING NAME
CVRI2402140	COUNTY OF RIVERSIDE ON BEHALF OF RIVERSIDE UNIVERSITY HEALTH SYSTEM vs AETNA HEALTH OF CALIFORNIA, INC.	Motion to Strike Motions to Compel (Defense) Motions to Compel (Plaintiff)

Tentative Ruling:

Moving party: Defendants Aetna Health of California, Inc. and Aetna Life Insurance Company

Responding party: Plaintiff County of Riverside on behalf of Riverside University Health System

Plaintiff County of Riverside owns and operates Riverside University Health System, a public teaching hospital located at 26520 Cactus Avenue, Moreno Valley, California. The Hospital did not have a contract with Defendants Aetna Health of California, Inc. or Defendant Aetna Health and Life Insurance Company.

Plaintiff alleges Defendants have failed to fully reimburse the Hospital for the medically necessary and physician-ordered services provided to Defendants' ninety-eight (98) enrollees and/or insureds whose initials are listed in the FAC (Exhibit 1). (FAC ¶¶26.)

The operative First Amended Complaint (FAC) alleges: (1) breach of implied-in-fact contract; (2) breach of implied-in-law contract; (3) unfair business practices; (4) quantum meruit; and (5) restitution based on quasi-contract/unjust enrichment. However, the only causes of action still pending are causes of action three through five. (See Notice of Entry of Request for Dismissal, CVRI 2405683 dated May 15, 2025.)

There are seven (7) motions set to be heard on September 2, 2026. The first is a Motion to Strike brought by Defendants arguing Plaintiff's Doe Amendment naming non-party Aetna Life is procedurally improper, prejudicial, and futile. Defendants argue Plaintiff was not ignorant of Aetna Life's identity and Plaintiff unreasonably delayed filing the Doe Amendment to add Aetna Life as a Defendant. Plaintiff opposes the motion arguing they satisfied CCP §474 and did not unreasonably delay filing the Doe Amendment.

There are six discovery motions pending before the court. Four are brought by Defendants:

- (1) Defendants' Motion to Compel Plaintiff to provide further responses to Defendants' Requests for Production, Set One, Nos. 6, 7, 9, 10, 11, 12, 13, 14, 15, 16, 17, and 18;
- (2) Defendants' Motion to Compel Plaintiff to provide further responses to Defendants' Interrogatories, Set One;
- (3) Defendants' Motion to Compel Plaintiff to comply with its agreement and verified response that it would produce documents responsive to Defendants' Requests for Production, Nos. 5 and 20;
- (4) Defendants' Motion to Compel Plaintiff to provide further responses to Aetna's Form Interrogatories, Set One;

In Opposition to the motions, Plaintiff notes on July 23, 2026, it agreed to supplement responses to some of the outstanding requests and produce documents once the parties agreed on the scope for the third-party paid claims data production. However, Defendant filed the motions the next day. "Riverside remains willing to further meet and confer regarding the scope of the third party paid claims data production and accordingly provide supplemental responses..." (Opp. to MTC to RFP p.1:10-11.)

Two are brought by Plaintiff:

- (1) Plaintiff's Motion to Compel Defendant Aetna Health of California, Inc. to serve further verified responses to Plaintiff's Special Interrogatories, Set One, Nos. 2-6, 8-15; and
- (2) Plaintiff's Motion to Compel Defendant Aetna Health of California, Inc. to serve further verified responses to Plaintiff's Requests for Production of Documents, Set One, Nos. 24-29, 31-33.

In Opposition, Defendants contend Plaintiff did not meet and confer with Aetna on most of the issues raised in the motions, so Aetna does not know precisely what Plaintiff disputes or is looking for.

Jury trial is currently set for October 2, 2026.

Analysis

I. Motion to Strike

A motion to strike may be applied to any irrelevant, false or improper matter, or any pleading not drawn or filed in conformity with the laws of the state, court rule, or court order. (CCP §436.) The grounds must appear on the face of the pleading or judicial notice. (CCP §437.)

In *Barrows v. Am. Motors Corp.* (1983) 144 Cal.App.3d 1, 9 (*Barrows*), the court found that a motion challenging a doe amendment must be an evidence-based motion, such as a motion for summary judgment. In *A.N. v. County of Los Angeles* (2009) 171 Cal.App.4th 1058, 1067, the court followed *Barrows* and stated that a challenge of a doe amendment must be via an evidence-based motion. There, the defendant had filed a motion to quash, and the court treated it as a *Barrows* motion. (*Id.* at 1063-1064, 1067.) A motion to strike under CCP §435 is a motion to attack improper matters in a pleading and is not based in evidence. For this reason, a motion to strike under CCP §435 is not a proper vehicle to attack a Doe Amendment. However, Defendants' Notice of Motion indicates the motion is brought pursuant to *A.N. v. County of Los Angeles* (2009) 171 Cal.App.4th 1058 and not CCP §435. In substance, the instant motion is a *Barrows* motion. Since Defendants indicated they brought the motion under *A.N. v. County of Los Angeles* and not CCP §435, and the substance of the motion is a *Barrows* motion challenge to the Doe Amendment, it is proper.

II. Barrows Motion – Challenging a Doe Amendment

Pursuant to CCP § 474, when a plaintiff is ignorant of the name of a defendant, he must state that fact in the complaint, designate such defendant in any pleading or proceeding by any name, and when the defendant's true name is discovered, the plaintiff may amend the pleading accordingly. Generally, the doe amendment "relates back" to the commencement of the action for statute of limitation purposes. (CCP § 474; *Smeltzley*

v. Nicholson Mfg. Co. (1977) 18 Cal.3d 932, 935.) A “doe amendment” must satisfy procedural requirements, including the requirement that the plaintiff allege in the original complaint that he or she is “ignorant of the name of a defendant.” (CCP § 474.) A plaintiff is ignorant if either: 1) plaintiff was unaware of defendant’s identity; 2) plaintiff was unaware of defendant’s culpability (facts giving rise to a cause of action against the defendant;) or 3) the law did not give plaintiff a right of action until after commencement of the action. (*Marasco v. Wadsworth* (1978) 21 Cal.3d 82, 88.) “Moreover, the plaintiff must actually be ignorant of the doe defendant’s name, i.e., ‘ignorant of the facts giving rise to a cause of action against that defendant.’” (*Fireman’s Fund Ins. Co. v. Sparks Construction, Inc.* (2004) 114 Cal.App.4th 1135, 1143) Whether plaintiff was genuinely “ignorant” of the “Doe” defendant’s identity or liability when the complaint was filed is determined by a good faith test. (*Woo v. Superior Court* (1995) 75 Cal.App.4th 169, 177 (genuine ignorance required).) A doe amendment will be barred if there is unreasonable delay in filing after the plaintiff acquires knowledge of the defendant’s identity. (*Barrows, supra*, 144 Cal.App.3d at 8.)

On July 22, 2026, Plaintiff dismissed AHLIC and amended the Second Amended Complaint to add Aetna Life as a defendant. (7/22/26 Amendment to Complaint in consolidated action.)

a. Unreasonable Delay

Defendants argue Plaintiff knew of Aetna Life’s identity and role in the instant action as of May 11, 2026. On March 9, 2026, Defendants served documents on Plaintiff, which included Explanation of Benefits for the claims on Plaintiff’s claims list. (Carpenter Decl. ¶2.) These documents identified the Aetna entity that administered each disputed healthcare claim, including a number of claims administered by Aetna Life Insurance Company rather than Aetna Health of California, Inc. (Carpenter Decl. ¶2.) On May 11, 2026, Defendants directed Plaintiff to the Explanation of Benefits documents in Aetna’s earlier document production, identified two examples by Bates number, and advised that one disputed healthcare claim “was administered by Aetna Life Insurance Company (and thus not a part of this suit).” (Carpenter Decl. ¶7, Ex. A.) Defendants argue Plaintiff undisputably knew of Aetna Life’s role at that time and then unreasonably delayed filing a Doe Amendment until after Defendants’ summary judgment deadline and until the eve of trial (trial currently set for 10/2/26).

In Opposition, Plaintiff argues Defendant has not shown that Plaintiff knew of Aetna Life’s involvement in the case at the time Plaintiff filed the action in April 2024. Plaintiff argues Defendant’s evidence shows, at most, that Plaintiff learned additional information concerning Aetna Life during discovery in 2026. Plaintiff then argues it did not delay in amending the pleading. Rather, Plaintiff argues the entity analysis remained ongoing into June 2026, and a proper entity review required “more than identifying the name ‘Aetna Life Insurance Company’ on an individual document.” (Pineda Quintana Decl. ¶¶ 16, 18.) Plaintiff’s counsel states by July 8, 2026, he “had received information reflecting the results of the claim-handling-entity analysis” and informed Plaintiff’s representatives that AHLIC would be dismissed and Aetna Life would be added as a Doe defendant. (¶19.) Counsel then sought confirmation from Plaintiff on which entities they wished to pursue claims against and after receiving that confirmation on July 16, 2026, counsel filed the Doe Amendment on July 22, 2026. (¶¶20-25.) Counsel states “Plaintiff did not wait until July 2026 merely because it had decided not to name a party whose involvement had

already been definitively established. During the period between March and July 2026, Plaintiff and its representatives were working to determine which entities actually handled the individual claims at issue, assess claims associated with different Aetna entities and other claim-handling entities, review information produced by Defendants, obtain the necessary claim-handling analysis, and obtain final instructions concerning the parties and claims to be pursued.” (¶28.)

The evidence before the court demonstrates Plaintiff utilized the discovery process to analyze documents provided by Defendants and ultimately concluded that Aetna Life was properly added as a party in July 2026. Even if the court relies on Defendant’s interpretation of the timeline, Defendant argues Plaintiff knew of Aetna Life’s position as a party in May 2026, a mere two months prior. On these facts, there is no evidence Plaintiff unreasonably delayed filing the Doe Amendment.

b. Prejudice

Defendants argue Plaintiff’s use of the Doe Amendment is prejudicial because the proper procedural avenue to add Aetna Life as a party was through CCP §473(a)(1) for leave to amend pleadings. Defendants are incorrect. CCP §474 requires an amendment for naming a doe defendant. It does not identify how the amendment is to occur. Local Rule 3125 provides: “When a plaintiff or cross-complainant names a defendant or cross-defendant by a fictitious name pursuant to Code of Civil Procedure section 474, and thereafter learns the party’s true name, the plaintiff or cross-defendant shall promptly amend the complaint or cross-complaint by filing Riverside Superior Court local form RI-C1035, Amendment to Complaint / Cross-Complaint. No motion or ex parte application shall be noticed.” Here, Plaintiff filed the local form on July 23, 2026. Based on the local rule, Plaintiff was not required to obtain leave.

Defendants also argue Plaintiff’s delay has left Aetna Life “without any meaningful time to investigate the claims asserted against it” or to file a motion for summary judgment before trial. (Mot. p.16:18-28.) The court in *A.N. v. County of Los Angeles*, *supra*, found prejudice in adding a Doe Defendant too late: “The Doe Defendants were brought into this case less than one month before the case was sent to begin trial, and it does not require speculation to recognize that a party who is drawn into litigation on the eve of trial will face difficulties in preparing a defense in such short order.” (171 Cal.App.4th 1058, 1069.) In Opposition to the motion, Plaintiff essentially concedes Defendant Aetna Life has inadequate time to prepare for trial. Plaintiff contends “the prejudice Defendants identify is not ‘irreparable.’ It can be addressed directly by continuing the trial and associated pretrial deadlines so that Aetna Life has an appropriate opportunity to conduct and respond to discovery, designate experts, and bring any dispositive motion available to it.” (Opp. p.7:25-28.)

There are two possible rulings, as this Court sees it: (1) deny the instant motion finding the Doe Amendment is proper but continuing the trial so Aetna Life is not prejudiced; or (2) grant the instant motion finding the late Doe Amendment on the eve of the October 2, 2026, trial date constitutes prejudice to Aetna Life.

The parties acknowledge the court denied two previous requests to continue the trial. (Carpenter Decl. Ex. B. (“[a]s you know, we previously sought to continue the trial date by two ex parte applications...[but] the Court denied that request”).) Now, Plaintiff acknowledges the timing of the Doe Amendment has left Aetna Life without adequate

time to prepare for trial. By essentially acknowledging the prejudice to Aetna Life, Plaintiff has, arguably, conceded the motion should be granted.

Based on the record as a whole, the Court DENIES the instant motion finding the Doe Amendment is proper but, the Court will continue the trial, so Aetna Life is not prejudiced. Counsel are ordered to appear at the hearing on this motion either in person or via Zoom to discuss a new trial date.

III. Motions to Compel

a. Defendants' Motions to Compel (x4)

Defendants bring four motions to compel further responses from Plaintiff in response to Requests for Production of Documents and interrogatories.

In Opposition to the motions, Plaintiff notes on July 23, 2026, it agreed to supplement responses to some of the outstanding requests and produce documents once the parties agreed on the scope for the third-party paid claims data production. However, Defendant filed the motions the next day. "Riverside remains willing to further meet and confer regarding the scope of the third party paid claims data production and accordingly provide supplemental responses..." (Opp. to MTC to RFP p.1:10-11.)

The fact that Plaintiff is willing to produce supplemental responses pursuant to completing the meet and confer conversations the parties started the day before Defendants filed these motions is encouraging.

(1) Defendants' Motion to Compel Plaintiff to provide further responses to Defendants' Requests for Production, Set One, Nos. 6, 7, 9, 10, 11, 12, 13, 14, 15, 16, 17, and 18;

(2)

Request #	Documents Sought	Discussion
6	All communications with third-party intermediary vendors regarding the disputed claims.	Plaintiff argues the term "third-party intermediary vendors" is not defined, but Plaintiff did not object to this term in its response to this request. Defendant has shown good cause to request these documents as they would reveal how the hospital bills, what rates it demands, and how claims are negotiated and processed. If Plaintiff accepted a lower rate based on a contract or arrangement with a third-party intermediary for the disputed claims, it would be relevant to Defendant's liability in this case. GRANT.
7	Documents sufficient to show the treating provider's	Defendant argues this language is taken directly from 28 Cal. Code Regs §

	training qualifications, and length of time in practice for each disputed claim.	1300.71(a)(3) which sets forth the factors that determine the “reasonable and customary value” of a hospital’s services. This shows good cause. Plaintiff argues the term “treating provider” is not defined. In response to the Request, Plaintiff objected the term “provider” wasn’t defined. This is fair – the term should be defined. Plaintiff also argues the request runs afoul of third-party privacy rights. This is not persuasive. The information requested is about a provider’s length of time in practice and not about their personal identifying information, like address, telephone number, email, or even their age. GRANT but Defendant needs to define the term “treating provider.”
9	Documents describing the methodology, formula, or process used to determine or set the chargemaster rates.	Plaintiff argues the term “provider” is not defined but that term is not used in this request. Plaintiff already provided the operative pricing information, including its Chargemasters for 2020-2024 (Bates RUHS 005911-005915). Defendant argues Plaintiff has conceded the Chargemasters are relevant by providing them, so information about how the Chargemasters are created are equally relevant. Defendant’s argument is not persuasive. “[E]vidence of a professional’s customary charges and earnings is relevant and admissible to demonstrate the value of the services rendered.” (<i>Children’s Hospital Central California v. Blue Cross</i> (2014) 226 Cal.App.4th 1260, 1275.) Defendant has not given any reason why it would need the methodology by which the Chargemaster rates were created/decided upon. DENY.

10-15	Documents sufficient to show the in-network and out-of-network rates Plaintiff receives for the same services from other commercial payers, Medicare payers, and Medicaid payers.	Defendant argues this information is relevant to show prevailing provider rates charged in the general geographic area in which the services were rendered. (28 Cal. Code Regs. §1300.71(a)(3).) Plaintiff agreed to supplemental these responses “once the parties agree on the scope of the third-party paid claims data to be produced.” Plaintiff has agreed to produce supplemental documents, and Defendant has demonstrated good cause to discover this information. GRANT.
16	The providers’ cost reports submitted to US Department of HHS.	Plaintiff argues “the costs of the services provided are not relevant to a determination of reasonable value.” (<i>Children’s Hospital Central California, supra</i>, 226 Cal.App.4th at 1278.) Defendant argues cost reports speak to the economic structure of Plaintiff’s practice and provides context to determine whether the chargemaster rates represent reasonable and customary value. Defendant argues a cost report reflects the rates Plaintiff charges and the volume at which its services are actually delivered. Plaintiff also argues this is overbroad as it does not indicate a time period. This is a valid objection. DENY. Costs are not relevant to determining reasonable value and there is no time period limiting production.
17	All documents and communications that show the amounts the providers have collected directly from patients on each disputed claim.	Defendant argues this information goes directly to damages – Plaintiff can only recover from Defendants amounts they have not otherwise recovered. “Plaintiff agrees to produce further information related to the amounts paid regarding the claims at issue.” (Opp. p.6:12-13.) GRANT.
18	Documents sufficient to show the amounts Plaintiff	Defendant argues this is relevant to show fees usually charged by the provider,

	usually charges other commercial payers for the services at issue in the disputed claims.	which is relevant under 28 Cal. Code Regs § 1300.71(a)(3). This shows good cause. Plaintiff argues the term “provider” is not defined. This is fair – the term should be defined. Plaintiff says it has already produced the Chargemaster information. GRANT, but define “provider.”
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(3) Defendants’ Motion to Compel Plaintiff to provide further responses to Defendants’ Interrogatories, Set One;

Defendant argues Plaintiff’s response to the Special Interrogatories improperly refers to the entire document production consisting of nearly 6,000 pages for nearly every response. Defendant propounded twelve (12) special interrogatories. In response to each, Plaintiff made various objections and said the requested information could be obtained from documents already provided. Specifically, Plaintiff referenced RUHS 00001-005910. Defendant argues this is not a complete or straightforward answer as required by the CCP.

In answering an interrogatory, it is not proper to answer by stating, “See my deposition” or “See the complaint herein.” If the question requires reference to some other document, it should be identified and its contents summarized so that the answer by itself is fully responsive to the interrogatory. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783-784.) Plaintiff argues the bates range provided is not amorphous because it is organized by patient claim and in direct response to Defendant’s factual inquiries about the disputed claims.

Plaintiff’s response is improper. Plaintiff did not comply with CCP §2030.230 that requires the responding party to specify the writings “in sufficient detail to permit the propounding party to locate and to identify” them. Referring to the entire 6,000-page document production does not provide any detail. Plaintiff did not provide a Code-compliant response.

GRANT.

(4) Defendants’ Motion to Compel Plaintiff to comply with its agreement and verified response that it would produce documents responsive to Defendants’ Requests for Production, Nos. 5 and 20;

Defendants note Plaintiff’s response to RFP Nos. 5 and 20 indicated they had produced responsive documents but did not identify the specific documents produced. Defendants argue Plaintiff must be ordered to comply with its assertion that it would produce responsive documents. In Opposition, Plaintiff does not identify which documents were responsive to these requests. Plaintiff needs to identify which documents were produced in response to RFP Nos. 5 and 20. **GRANT.**

(5) Defendants’ Motion to Compel Plaintiff to provide further responses to Aetna’s Form Interrogatories, Set One;

Defendant argues Plaintiff's response to the Form Interrogatories improperly refers to the entire document production consisting of nearly 6,000 pages for nearly every response. Defendant propounded one (1) form interrogatory – Form Interrogatory No. 12.1. In response, Plaintiff made various objections and said the requested information could be obtained from documents already provided. Specifically, Plaintiff referenced RUHS 00001-005910. Defendant argues this is not a complete or straightforward answer as required by the CCP.

For the same reasons discussed above, Plaintiff's response is improper. Plaintiff did not comply with CCP §2030.230 that requires the responding party to specify the writings "in sufficient detail to permit the propounding party to locate and to identify" them. Referring to the entire 6,000-page document production does not provide any detail. Plaintiff did not provide a Code-compliant response.

GRANT.

b. Plaintiff's Motions to Compel (x2)

1. Plaintiff's Motion to Compel Defendant Aetna Health of California, Inc. to serve further verified responses to Plaintiff's Special Interrogatories, Set One, Nos. 2-6, 8-15

SROG #	Information Sought	Discussion
9-13, 15	These interrogatories seek information about amounts billed by, and amounts Aetna paid to, other healthcare providers for "similar" services.	The parties have reached an agreement on every aspect of the production concerning Aetna's third-party paid claims data <i>except</i> geographical scope. Aetna has proposed geozips for 925 (Riverside), 917 (Ontario, Pomona, West Covina), 919 (Imperial Beach, Pine Valley), and 922-924 (San Bernardino, Palm Springs). Plaintiff seeks to include the following seven counties: Los Angeles, Orange, Riverside, San Bernardino, Kern, Ventura, and Imperial. Defendant argues Plaintiff's proposal includes fundamentally different healthcare markets that are not relevant to the claims at issue, which originate from a Moreno Valley hospital. Defendant argues producing the requested data from 160 hospitals in seven different counties is grossly burdensome and not justified.

		Defendant's proposed geozips appear sufficient. Plaintiff has not provided any reason for Aetna to produce information from hospitals in different counties, let alone counties that are hours away from Riverside (Ventura and Kern, but also parts of Los Angeles). GRANT the motion but limit the response to Defendant's proposed geozips.
6, 8	These interrogatories ask Aetna to identify all facts supporting its contention that Plaintiff's charges are "excessive."	Aetna stated it would produce cost-to-charge ratios and CMS data that it will use to support this contention, noting that expert disclosures regarding the reasonableness of charges would be made at the appropriate time. Whether Riverside's charges are "excessive" is an expert determination and compelling Aetna to produce that information in response to interrogatories would ignore expert discovery procedures set forth in the CCP. Plaintiff argues that even though Aetna indicated it would produce documents after a protective order was entered, it has not produced those documents. GRANT, as Aetna has indicated, will produce cost-to-charge ratios and CMS data.
2-5	These interrogatories seek information about how Aetna calculated its reimbursement amounts for services provided by Plaintiff.	Plaintiff's sole argument is that Aetna stated in response to a letter that it would supplement its production, but it has not done so. Defendant's opposition does not indicate it agreed to produce further documents. It is unclear if Defendant has additional documents to produce. GRANT. If Defendant does not have any further documents to produce, the supplemental response can say so.

14	“If you contend that the volume of patients your refer to your contracted providers justifies payment less than those contracted providers’ full billed charges, state all facts supporting that contention, including but not limited to, the volume of patients you refer per year from September 1, 2020, to May 31, 2024, to each contracted provider.”	Defendants argue this interrogatory is unintelligible. The terms “refer”, “justifies,” “payment,” and “full billed charges” are not defined. Plaintiff did not provide any clarity on this issue in its motion. DENY as Plaintiff has not made it clear what information it is seeking.
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2. Plaintiff’s Motion to Compel Defendant Aetna Health of California, Inc. to serve further verified responses to Plaintiff’s Requests for Production of Documents, Set One, Nos. 24-29, 31-33.

Defendant argues the motion is procedurally improper because it seeks to compel further responses under CCP § 2031.310 and compel compliance under CCP § 2031.320. Defendant is correct, the motion seeks two different forms of relief and should be two motions. *However, given the looming trial date, the merits of the motion are still addressed.*

Defendant argues Plaintiff failed to meet and confer on issues other than the geographic scope of third-party paid claims data. Defendant argues Plaintiff did not meet and confer regarding Request Nos. 24-26, 31, and 32 before filing the instant motion. In Attorney Quintana Pineda’s March 13, 2026, meet and confer letter, he raised these requests for discussion. (Quintana Pineda Decl. Ex. D.) In response, Attorney Kingsbery did not respond concerning those requests. Plaintiff addressed them and then Defendant failed to respond. This is not an insufficient meet and confer attempt.

Request Nos. 27-29 and 33 concern Aetna’s paid claims data and contracts or agreements with other providers. Aetna agreed to produce data showing the amount similar providers billed and amounts Aetna allowed for the same emergency and post-stabilization services within the relevant geographic area during the relevant time period. As discussed above, the parties have not agreed on the appropriate geographic area for the production. Again, the court **GRANTS** the request and limits the production to Defendant’s proposed geozips.

Request Nos. 24-26 and 31 seek documents regarding Aetna’s process for reviewing and its payment calculations for disputed claims. Aetna stated it would produce non-privileged responsive documents after the entry of a protective order. Aetna claims it has produced responsive documents but notes the motion does not identify what documents Plaintiff seeks. **GRANT**. If Defendant has produced all responsive documents in its possession, custody, or control, its supplemental response can say so.

Request No. 32 asks Aetna to produce all documents relating to Aetna’s contention that Plaintiff’s charges are “excessive.” Aetna stated it would produce cost-to-charge ratios and CMS data that it will use to support this contention, noting that expert

disclosures regarding the reasonableness of charges would be made at the appropriate time. Whether Riverside's charges are "excessive" is an expert determination and compelling Aetna to produce that information in response to interrogatories would ignore expert discovery procedures set forth in the CCP. Plaintiff argues that even though Aetna indicated it would produce documents after a protective order was entered, it has not produced those documents. **GRANT**, as Aetna has indicated, will produce cost-to-charge ratios and CMS data.

Summary

Motion to Strike (Barrows Motion): Deny the instant motion finding the Doe Amendment is proper but **continuing the trial so Aetna Life is not prejudiced**.

Defendants' Motion to Compel Plaintiff to provide further responses to Defendants' Requests for Production, Set One, Nos. 6, 7, 9, 10, 11, 12, 13, 14, 15, 16, 17, and 18:

GRANT request nos. 6, 7 (define "treating provider"), 10-15, 17, and 18 (define "provider").

DENY request nos. 9 and 16.

Defendants' Motion to Compel Plaintiff to provide further responses to Defendants' Interrogatories, Set One: **GRANT**.

Defendants' Motion to Compel Plaintiff to comply with its agreement and verified response that it would produce documents responsive to Defendants' Requests for Production, Nos. 5 and 20: **GRANT**.

Defendants' Motion to Compel Plaintiff to provide further responses to Aetna's Form Interrogatories, Set One: **GRANT**.

Plaintiff's Motion to Compel Defendant Aetna Health of California, Inc. to serve further verified responses to Plaintiff's Special Interrogatories, Set One, Nos. 2-6, 8-15:

GRANT as to interrogatories 9-13 (limited to Defendant's proposed geozips); 6 and 8, and 2-5 (if Defendant does not have any further documents to produce, the supplemental response can say so).

DENY as to interrogatory number 14.

Plaintiff's Motion to Compel Defendant Aetna Health of California, Inc. to serve further verified responses to Plaintiff's Requests for Production of Documents, Set One, Nos. 24-29, 31-33. **GRANT**: 27-29 and 33 (limit to Defendant's proposed geozips); 24-26 and 31 (if Defendant has produced all responsive documents in its possession, custody, or control, its supplemental response can say so); 32 (Aetna has indicated it will produce cost-to-charge ratios and CMS data).